

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/09/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006388

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: JUAN ALBERTO PAREDES
GUERRA

vs.

DEFENDANT: PAUL VINCENT KLAUS
LELLOUCHE, ET AL

NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR
PROGRAM

RULING

Defendants filed a motion to compel further responses to Form Interrogatory Nos. 8.5 and 8.6 and Special Interrogatories and Requests for Production of Documents on the grounds that Plaintiff failed to identify the dates he missed work and lost income. Plaintiffs assert in response that they have served supplemental responses and supplemental discovery.

Defendants' Separate Statement only references Form Interrogatory Nos. 8.5 and 8.6 which ask for the date Plaintiff returned to work at each place of employment following the injury, and the dates he did not work and for which he lost income. Plaintiff's supplemental responses to these interrogatories state he does not know the exact date he returned to work, and that he missed various dates from 5/29/2023 to the present. There is no indication to date that the supplemental responses have been verified. Plaintiff also provided a sworn declaration stating that he made a good faith effort to respond but no longer has in his possession the dates he returned to work, but that he has contacted his employer.

Responses to interrogatories must be "as complete and straightforward as the information reasonably available to the responding party permits." (Code of Civ. Proc. §2030.220, subd. (a).) If a party is unable to secure details, he should set forth the efforts made to secure the information. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 782.)

In this case, the Court finds that while the Declaration provided sufficient information to supplement those responses, that information should be incorporated into the responses. No later than by September 25, 2026, Plaintiff shall amend the responses to include the information stated in his declaration, that he no longer has the dates in his possession, but he has contacted his employers to obtain the information. The further responses should be verified.

Defendants' motions to compel further responses to Request for Documents and responses to Special Interrogatories are denied as there is no Separate Statement referencing which responses are at issue.

Defendants' request for sanctions in the amount of \$10,405 is denied as Defendants did not prevail on two of the three motions they brought.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/09/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006575

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: ESMERALDA LARIOS

vs.

DEFENDANT: LIFE GENERATIONS
HEALTHCARE LLC, DBA SMITH RANCH
SKILLED NURSING & REHABILITATION
CENTER

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Defendant’s motion, whether characterized as a motion for summary judgment, motion for summary adjudication, or both, is denied.

Allegations in Plaintiff’s Complaint

Plaintiff Esmeralda Larios alleges that on March 23, 2024, she was at Defendant Life Generations Healthcare LLC dba Smith Ranch Skilled Nursing & Rehabilitation Center’s facility with a client to visit her client’s mother. While she was walking outside along the sidewalk, her foot got caught in a sprinkler that was set close to the sidewalk. She stumbled and fell forward into a bench and suffered injuries. Plaintiff asserts causes of action for premises liability and negligence.

Standard

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal. App. 4th 1110, 1119.)